UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF NEW YORK

SHEVAUN KASI MISTRY,

Plaintiff,

v.

CORNELL UNIVERSITY, NEEMA KUDVA, SHEA KYTOMMA, SAMANTHA PENNELL, and LESLIE LOK,

Defendants.

Case No. 3:26-cv-1419 (ECC/ML)

MEMORANDUM OF LAW IN SUPPORT OF DEFENDANTS' MOTION TO DISMISS

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TABLE OF CONTENTS

PRELIMINARY STATEMENT 1
FACTUAL BACKGROUND 2
A. Plaintiff's Enrollment and Academic Progress in the M.Arch. Program 2
B. Plaintiff's Immigration Status and Enrollment-Related Issues 3
C. Plaintiff's Graduate Assistant Appointments and Related Payroll Complaints 3
D. Plaintiff's February 24, 2025, Meeting with Defendant Kudva 4
E. Plaintiff Fails to Pay her Spring 2025 Tuition 5
F. Plaintiff's Withdrawal from the M.Arch. Program 5
G. Plaintiff's Complaint 5
ARGUMENT 5
POINT I: ANY CHALLENGE TO PLAINTIFF'S WITHDRAWAL IS UNTIMELY 6
POINT II: PLAINTIFF FAILS TO PLAUSIBLY ALLEGE TITLE VII DISCRIMINATION OR RETALIATION 8
A. Plaintiff's Title VII Discrimination Claim Must Be Dismissed 8
1. The Majority of the Alleged Discriminatory Acts Are Time-Barred 9
2. Plaintiff's Academic Withdrawal Is Not an Adverse Employment Action 9
3. The Complaint Fails to Plausibly Allege National Origin Discrimination 10
B. Plaintiff's Title VII Hostile Work Environment Claim Fails as a Matter of Law 13
C. Plaintiff's Title VII Retaliation Claim Must Be Dismissed 14
POINT III: PLAINTIFF'S TITLE VI DISCRIMINATION CLAIMS MUST BE DISMISSED 16
A. The Complaint Lacks Non-Conclusory Allegation of Intentional Discrimination 16
B. Plaintiff's Disparate Treatment Theory Fails 17
C. Plaintiff's Deliberate Indifference Theory Fails 17
POINT IV: PLAINTIFF'S SECTION 1981 DISCRIMINATION CLAIM FAILS 18
POINT V: PLAINTIFF'S NYSHRL CLAIMS MUST BE DISMISSED 19
A. Plaintiff Fails to Satisfy Even the NYSHRL's More Lenient Standard 19
B. Plaintiff's Sixth Cause of Action Alleging Retaliation under the NYSHRL Fails 20
C. Plaintiff's NYSHRL § 296(6) Aiding and Abetting Claim Fails Because There Is No Predicate Violation 21
POINT VI: PLAINTIFF'S WAGE-RELATED CLAIMS ARE INSUFFICIENTLY PLED 21
A. Plaintiff's NYLL Untimely Payment Claims Should Be Dismissed 21
B. Plaintiff's FLSA Untimely Payments Claims Must Be Dismissed 22

PRELIMINARY STATEMENT

Plaintiff Shevaun K. Mistry is a former graduate student in Cornell University's Master of Architecture program who was required to withdraw after years of poor academic performance. The Complaint itself alleges failing grades, academic warnings in Fall 2021 and Fall 2022, a 1.750 GPA, and an inexplicable course of events that led to Plaintiff attending more than one course in which she was not enrolled while failing to attend a course in which she was enrolled. Plaintiff now attempts to recast her academic failures and the resulting required withdrawal from her graduate program as national origin discrimination and retaliation under Title VII, Title VI, the NYSHRL, and 42 U.S.C. § 1981, wage violations under the NYLL and FLSA, and contract and quasi-contract claims. But the Complaint identifies only one allegation that could conceivably be connected to her national origin: an isolated comment that referred to India, rather than Canada, as her home country—a facially non-derogatory remark by a person whom Plaintiff does not allege served on or influenced the Academic Review Committee that required her withdrawal.

Dismissal of the Complaint is required for multiple independent reasons. *First*, Plaintiff's claims challenging Cornell's academic decisions are barred because she failed to timely commence an Article 78 proceeding, the exclusive vehicle for challenging university academic determinations, and she cannot evade Article 78's four-month statute of limitations by repackaging academic grievances as discrimination, retaliation, contract, or quasi-contract claims. *Second*, the discrimination claims fail because the Complaint is devoid of non-conclusory allegations connecting any decision to national origin: the alleged stray remark was made months before Plaintiff's withdrawal by a non-decisionmaker, while the Complaint's own allegations supply legitimate, nondiscriminatory explanations rooted in years of academic deficiency. *Third*, proximity alone cannot establish causation where Plaintiff was already demonstrably at risk of the adverse action before engaging in protected activity. Fourth, the wage claims are insufficiently pled. Fifth, the contract and quasi-contract claims identify no specific promise that Cornell allegedly

breached, any monies owed to Plaintiff or wrongfully withheld by Cornell. The Complaint should the retaliation claims fail because temporal proximity alone cannot establish causation where therefore be dismissed in its entirety.

Plaintiff was already demonstrably at risk of the adverse action before engaging in protected activity. *Fourth*, the wage claims are insufficiently pled. *Fifth*, the contract and quasi-contract claims identify no specific promise that Cornell allegedly breached, any monies owed to Plaintiff or wrongfully withheld by Cornell. The Complaint should therefore be dismissed in its entirety.

FACTUAL BACKGROUND

FACTUAL BACKGROUND[1]

A. Plaintiff's Enrollment and Academic Progress in the M.Arch. Program

Plaintiff, a Canadian citizen, matriculated in Cornell's Master of Architecture ("M.Arch.") program in Fall 2021. Compl. ¶ 5. In August 2021, Plaintiff submitted transfer-equivalency materials seeking academic credit for several prerequisite courses, including ARCH 5511, Constructive Drawing I. *Id.* ¶ 29. Plaintiff never received approval for this transfer of credits. Yet, she admits that she "never attended" the course in Fall 2021, resulting in a failing grade. *Id.* As a result of Plaintiff's poor academic performance, Plaintiff received Academic Warnings in both Fall 2021 and Fall 2022. *Id.* ¶ 57.

During Fall 2024, Plaintiff attended ARCH 5614, Building Technology I, for over two months before she "learned" that she was not enrolled in the course; instead, Plaintiff was enrolled in a different course, ARCH 5911 taught by Professor Leslie Lok ("Lok"). *Id.* ¶ 24. Plaintiff first attended ARCH 5911—the class in which she was actually enrolled—on November 1, 2024, nine weeks into the fourteen-week semester. *Id.* ¶ 25. On November 7, 2024, Lok informed Plaintiff that, because she had missed more than half of the semester, she could not earn a passing grade and recommended that Plaintiff withdraw from the course to avoid receiving a failing grade. *Id.* ¶ 27. Plaintiff does not allege that she took any steps to withdraw, nor does she allege that she successfully completed the course's academic requirements. Having only attended one class session and not completing the required work, Plaintiff failed ARCH 5911. Id. ¶¶ 27, 29.

In "[l]ate Fall 2024," Plaintiff enrolled in ARCH 8912, a Thesis course, for the Spring 2025 semester. Compl. ¶ 38. On January 10, 2025, two weeks before the start of the Spring 2025 semester, Plaintiff was administratively disenrolled from ARCH 8912 "on the ground that she had failed the

[1] These facts are based solely on the allegations Plaintiff alleged in her Complaint. They are taken as true for purposes of this motion only to the extent required by Federal Rule of Civil Procedure 12(b)(6). *Castagna-Esposito v. Chestnut*, No. 25-1894-cv, 2026 U.S. App. LEXIS 10225, at *3 (2d Cir. Apr. 9, 2026) (noting the requirement on a Rule 12(b)(6) motion to take as true facts alleged in a complaint and to draw all reasonable inferences in the plaintiff's favor).

prerequisite ARCH 5911." Id. ¶ 39. Notwithstanding that she was not enrolled, Plaintiff began that the defendant is liable for the misconduct alleged." *Id.* (citing *Twombly*, 550 U.S. at 556). To attending ARCH 8912, and "maintains that she did not learn of the drop until January 31, 2025." Id. survive a Rule 12(b)(6) motion, a plaintiff must plead "more than labels and conclusions, and a By the time Plaintiff sought a replacement elective, faculty allegedly denied her petitions for late formulaic recitation of the elements of a cause of action will not do." *Twombly*, 550 U.S. at 555 enrollment because the semester was too far along. Id. ¶ 40.
(internal quotations, citations, and alterations omitted).

B. Plaintiff's Immigration Status and Enrollment-Related Issues

Because Plaintiff was dropped from ARCH 8912 and did not timely enroll in a replacement, she fell

POINT I

below the twelve-credit threshold for her F-1 status. Id. Cornell advised on February 14, 2025, that her

ANY CHALLENGE TO PLAINTIFF'S WITHDRAWAL IS UNTIMELY

F-1 record was closed; after meeting with administrators, Plaintiff's F-1 status was restored by March 3, Plaintiff cannot evade Article 78 of the New York C.P.L.R. by repackaging her
2025. Compl. ¶¶ 40–43.

disagreement with Cornell's academic determinations as contract, quasi-contract, discrimination,

ARGUMENT

or retaliation claims. Her First through Seventh, Tenth, and Eleventh Causes of Action

principally challenge her required withdrawal, the associated loss of her GTRS position, and the

"To survive a motion to dismiss, a complaint must contain sufficient factual matter . . . to 'state a claim academic decisions leading to them. Any such challenge had to be brought within four months of to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting Bell Atl. Cornell's determination, but no timely Article 78 proceeding was commenced.
Corp. v. Twombly, 550 U.S. 544, 570 (2007)). "A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for Disputes over grading, academic standing, dismissal, and satisfaction of program
the misconduct alleged." Id. (citing Twombly, 550 U.S. at 556). To survive a Rule 12(b)(6) motion, a requirements fall squarely within the province of Article 78. *Ansari v. N.Y. Univ.*, 1997 U.S.
plaintiff must plead "more than labels and conclusions, and a formulaic recitation of the elements of a Dist. LEXIS 6863, at *5 (S.D.N.Y. May 16, 1997); *Meisner v. Hamilton, Fulton, Montgomery*
cause of action will not do." Twombly, 550 U.S. at 555 (internal quotations, citations, and alterations *Bd. of Coop. Educ. Servs.*, 175 A.D.3d 1653 (3d Dept. 2019); *Grogan v. Saint Bonaventure*
omitted).

University, 91 A.D.2d 855, 855 (4th Dept. 1982) (citing *Tedeshi v. Wagner College*, 49 N.Y.2d

POINT I: ANY CHALLENGE TO PLAINTIFF'S

652, 658 (1980)). Academic institutions are better suited to make final decisions on internal

WITHDRAWAL IS UNTIMELY

academic matters, making Article 78 the appropriate vehicle for such controversies. *Chai v. N.Y.*

Univ., 2024 U.S. Dist. LEXIS 160094, at *16-17 (S.D.N.Y. Sept. 4, 2024) (quoting *Maas v. Plaintiff cannot evade Article 78 of the New York C.P.L.R. by repackaging her disagreement with*
Cornell, 94 N.Y.2d 87, 699 N.Y.S.2d 716, 721 N.E.2d 966 (1999)). "As such, 'when litigants Cornell's academic determinations as contract, quasi-contract, discrimination, or retaliation claims.
fail to avail themselves of [Article 78], courts may justifiably dismiss plenary claims premised Her First through Seventh, Tenth, and Eleventh Causes of Action principally challenge her required
upon alleged failures to follow applicable principles set forth in [university] handbooks.'" *Id.* withdrawal, the associated loss of her GTRS position, and the academic decisions leading to them. Any

such challenge had to be brought within four months of Cornell's determination, but no timely

that the defendant is liable for the misconduct alleged." *Id.* (citing *Twombly*, 550 U.S. at 556). To

Article 78 proceeding was commenced.

survive a Rule 12(b)(6) motion, a plaintiff must plead "more than labels and conclusions, and a

Disputes over grading, academic standing, dismissal, and satisfaction of program requirements

formulaic recitation of the elements of a cause of action will not do." *Twombly*, 550 U.S. at 555

fall squarely within the province of Article 78. Ansari v. N.Y. Univ., 1997 U.S. Dist. LEXIS 6863, at *5

(internal quotations, citations, and alterations omitted).

(S.D.N.Y. May 16, 1997); Meisner v. Hamilton, Fulton, Montgomery Bd. of Coop. Educ. Servs., 175

A.D.3d 1653 (3d Dept. 2019); Grogan v. Saint Bonaventure University, 91 A.D.2d 855, 855 (4th Dept.

POINT I

1982) (citing Tedeshi v. Wagner College, 49 N.Y.2d 652, 658 (1980)). Academic institutions are better

ANY CHALLENGE TO PLAINTIFF'S WITHDRAWAL IS UNTIMELY

suited to make final decisions on internal academic matters, making Article 78 the appropriate vehicle

Plaintiff cannot evade Article 78 of the New York C.P.L.R. by repackaging her

for such controversies. Chai v. N.Y. Univ., 2024 U.S. Dist. LEXIS 160094, at *16-17 (S.D.N.Y. Sept. 4,

disagreement with Cornell's academic determinations as contract, quasi-contract, discrimination,

2024) (quoting Maas v. Cornell, 94 N.Y.2d 87, 699 N.Y.S.2d 716, 721 N.E.2d 966 (1999)). "As such,

or retaliation claims. Her First through Seventh, Tenth, and Eleventh Causes of Action

"when litigants fail to avail themselves of [Article 78], courts may justifiably dismiss plenary claims

principally challenge her required withdrawal, the associated loss of her GTRS position, and the

premised upon alleged failures to follow applicable principles set forth in [university] handbooks."*Id.*

academic decisions leading to them. Any such challenge had to be brought within four months of

Courts likewise reject efforts to evade Article 78 by labeling academic disputes as contract, tort

Cornell's determination, but no timely Article 78 proceeding was commenced.

or discrimination claims. Doe v. Columbia Univ., 2020 U.S. Dist. LEXIS 56233, *12 (S.D.N.Y. Mar.

31, 2020) ("Since Columbia's authority to expel a student based on an academic violation, is clearly

Disputes over grading, academic standing, dismissal, and satisfaction of program

stated, Doe's claim that Columbia's decision to deny him a degree was based on purely financial

requirements fall squarely within the province of Article 78. *Ansari v. N.Y. Univ.*, 1997 U.S.

considerations is merely an attempt to couch this challenge in terms of 'contract' to avoid Article 78's

Dist. LEXIS 6863, at *5 (S.D.N.Y. May 16, 1997); *Meisner v. Hamilton, Fulton, Montgomery*

statute of limitations."); Demas v. Levitsky, 291 A.D.2d 653, 660 (3d Dept. 2002) (dismissing breach

Bd. of Coop. Educ. Servs., 175 A.D.3d 1653 (3d Dept. 2019); *Grogan v. Saint Bonaventure*

of contract and negligence claims filed outside of the four-month statute of limitations period as

University, 91 A.D.2d 855, 855 (4th Dept. 1982) (citing *Tedeshi v. Wagner College*, 49 N.Y.2d

untimely because "[a]llegations couched in terms of 'contract' and 'tort' to avoid the applicable statute

652, 658 (1980)). Academic institutions are better suited to make final decisions on internal

of limitations, the claims are directed at Cornell's academic and administrative decision to reject

academic matters, making Article 78 the appropriate vehicle for such controversies. *Chai v. N.Y.*

plaintiff's administrative charges against [a university professor], which may be reviewed only in an

Article 78 proceeding" (citations omitted)); Zonshayn v. Sackler Sch. of Med., 648 F. Supp. 3d 485,

Univ., 2024 U.S. Dist. LEXIS 160094, at *16-17 (S.D.N.Y. Sept. 4, 2024) (quoting *Maas v.*

498 (S.D.N.Y. 2023); Alrqiq v New York Univ., 127 A.D.3d 674, 674-675 (1st Dept. 2015)

Cornell, 94 N.Y.2d 87, 699 N.Y.S.2d 716, 721 N.E.2d 966 (1999)). "As such, 'when litigants

(discrimination claim challenging a university's academic and administrative decision barred by Article

fail to avail themselves of [Article 78], courts may justifiably dismiss plenary claims premised

78's four-month limitations period).

upon alleged failures to follow applicable principles set forth in [university] handbooks.'" *Id.*

action was commenced. And any challenge to the required withdrawal decision was due by October 24, 2025 (i.e., four months after the decision on Plaintiff's appeal) pursuant to CPLR § 217.

Plaintiff cannot revive that expired period by characterizing her academic withdrawal as national origin discrimination. The *only* allegation remotely related to national origin is Kudva's February 24, 2025, comment; Plaintiff does not allege that Kudva served on or influenced the Academic Review Committee, and the comment post-dated years of academic difficulties. It therefore cannot convert the time-barred academic challenge into a timely plenary claim. *See Alrqiq*, 127 A.D.3d at 674-675 (affirming dismissal of discrimination complaint arising out of the plaintiff's non-admission to NYU's Orthodontics Residency Program; holding "[a]lthough 'couched in terms of unlawful discrimination,' the complaint is a 'challenge to a university's academic and administrative decision[] and thus is barred by the four-month statute of limitations for a CPLR article 78 proceeding, the appropriate vehicle for such a challenge" (quoting *Padiyar v. Albert Einstein Coll. of Medicine of Yeshiva Univ.*, 73 A.D.3d 634, 635 (1st Dept. 2010)). Thus, Plaintiff's First through Seventh, Tenth and Eleventh Causes of Action must be dismissed.

POINT II

PLAINTIFF FAILS TO PLAUSIBLY ALLEGE TITLE VII DISCRIMINATION OR RETALIATION

A. Plaintiff's Title VII Discrimination Claim Must Be Dismissed

Plaintiff's First Cause of Action alleges that Cornell discriminated against her based on actual Canadian or perceived Indian national origin through alleged wage delays, denial of administrative support, Kudva's statement, and the June 9, 2025, Notice of Required Withdrawal. *Compl.* ¶ 64. Each theory fails.

POINT II. PLAINTIFF FAILS TO PLAUSIBLY ALLEGE TITLE VII DISCRIMINATION OR RETALIATION

A. Plaintiff's Title VII Discrimination Claim Must Be Dismissed

1. The Majority of the Alleged Discriminatory Acts Are Time-Barred

Title VII requires a plaintiff in New York to file a charge of discrimination with the EEOC within 300 days of the allegedly discriminatory act. 42 U.S.C. § 2000e-5(e)(1); *Schwetz v. Bd. of Coop. Educ. Servs. of Nassau Cnty.*, 2026 U.S. App. LEXIS 5057, at *2 (2d Cir. Feb. 20, 2026) (summary order). The 300-day limitations period begins running on the day each act "happened." *Nat'l R.R. Passenger Corp. v. Morgan*, 536 U.S. 101, 110 (2002); *King v. Aramark Servs.*, 96 F.4th 546, 559 (2d Cir. 2024) (citing *Vega v. Hempstead Union Free Sch. Dist.*, 801 F.3d 72, 78–79 (2d Cir. 2015)).

Plaintiff filed her EEOC Charge on April 3, 2026. Compl. ¶ 16. Accordingly, only conduct occurring on or after June 7, 2025, falls within the 300-day limitations period. The following discrete acts on which Plaintiff predicates her discrimination claim occurred outside this period, and any discrimination claim premised thereon is therefore time-barred:

- The purported withholding and delayed payment of wages during January and February 2025 (*see Compl.* ¶¶ 30–37);
- The alleged denial of "administrative support" related to those wage complaints in the same period (*see id.* ¶¶ 38–44);
- Defendant Kudva's February 24, 2025, statement (*see id.* ¶¶ 45–46).

2. *Plaintiff's Academic Withdrawal Is Not an Adverse Employment Action*

The only alleged act within the 300-day limitations period is the June 9, 2025, Notice of Required Withdrawal. Title VII provides a cause of action only for "unlawful employment practice[s]," 42 U.S.C. § 2000e-2(a), and does not afford protection to students challenging academic decisions concerning their educational status, even where the academic decision arguably has a "tangential effect on [a graduate student's] status as an employee." *Bucklen v. Rensselaer Polytechnic Inst.*, 166 F. Supp. 2d 721, 725 (N.D.N.Y. 2001); *Weiss v. City Univ. of N.Y.*, 2019 U.S. Dist. LEXIS 43869, at *28 (S.D.N.Y. Mar. 18, 2019) ("Title VII relates to

2d 721, 725 (N.D.N.Y. 2001); Weiss v. City Univ. of N.Y., 2019 U.S. Dist. LEXIS 43869, at *28 (S.D.N.Y. Mar. 18, 2019) ("Title VII relates to 'unlawful employment practice[s],' 42 U.S.C. § 2000e-2(a), and does not afford protection to students alleging discrimination in their education where the claimed discrimination concerned the individual's role as a student.").

"unlawful employment practice[s]," 42 U.S.C. § 2000e-2(a), and does not afford protection to students alleging discrimination in their education where the claimed discrimination concerned the individual's role as a student."). Plaintiff's complaints concern her academic performance and standing, not an employment decision. By Plaintiff's own allegations, the Academic Review Committee required her withdrawal based on "her academic record, including a stated Spring 2025 semester GPA of 1.750, and previous academic warnings in 2021 and 2022. *Compl.* ¶ 57. Any tangential effect on her teaching assistantship does not transform that academic determination into a Title VII employment action. *Bucklen*, 166 F. Supp. 2d at 725.

Plaintiff's complaints concern her academic performance and standing, not an employment decision. By Plaintiff's own allegations, the Academic Review Committee required her withdrawal based on "her academic record, including a stated Spring 2025 semester GPA of 1.750, and previous academic warnings in 2021 and 2022. *Compl.* ¶ 57. Any tangential effect on her teaching assistantship does not transform that academic determination into a Title VII employment action. *Bucklen*, 166 F. Supp. 2d at 725.

3. The Complaint Fails to Plausibly Allege National Origin Discrimination

Even if timely and actionable, Plaintiff must plausibly allege that national origin was a motivating factor in an adverse employment action. McNeill v. Off. of Child. & Fam. Servs., 2026 U.S. Dist. LEXIS 61558, at *14 (N.D.N.Y. Mar. 24, 2026) (quoting Vega, 801 F.3d at 87 (2d Cir. 2015)). A Title VII discrimination complaint must allege nonconclusory facts making discrimination plausible. *Laporte v. Sullivan*, 801 F. Supp. 3d 98, 102 (N.D.N.Y. 2025) (quoting *EEOC v. Port Auth. of N.Y. & N.J.*, 768 F.3d 247, 254 (2d Cir. 2014)); *see also Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

3. The Complaint Fails to Plausibly Allege National Origin Discrimination

Even if timely and actionable, Plaintiff must plausibly allege that national origin was a motivating factor in an adverse employment action. *McNeill v. Off. of Child. & Fam. Servs.*, 2026 U.S. Dist. LEXIS 61558, at *14 (N.D.N.Y. Mar. 24, 2026) (quoting *Vega*, 801 F.3d at 87 (2d Cir. 2015)). A Title VII discrimination complaint must allege nonconclusory facts making discrimination plausible. *Laporte v. Sullivan*, 801 F. Supp. 3d 98, 102 (N.D.N.Y. 2025) (quoting *EEOC v. Port Auth. of N.Y. & N.J.*, 768 F.3d 247, 254 (2d Cir. 2014)); *see also Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

Plaintiff's Complaint is entirely devoid of factual allegations supporting a plausible inference that Cornell acted with discriminatory animus toward Plaintiff. Instead, it alleges years of unrelated academic, enrollment, payroll, visa, and withdrawal disputes, but no facts connecting any decision to national origin. The Complaint is, at bottom, "little more than plaintiff's grade dispute dressed up as a civil rights action." Williams v. City Univ. of New York, 2014 U.S. Dist. LEXIS 118782, at *25–26 (E.D.N.Y. Feb. 7, 2014) (dismissing a graduate student's discrimination claims arising from academic performance and withdrawal). The only visa-related statement alleged is February 24, 2025, exchange: "February Break isn't long enough to travel to India" and after Plaintiff said she was from Toronto, "India, Canada, I don't discriminate." Compl. ¶¶ 45–46.[2] The probative value of a remark turns on the speaker, timing, content, and context. Cherry v. New York City Hous. Auth., 564 F.

[2] As discussed above, any claim arising out of this singular comment is time-barred, and the Court need not proceed beyond Point II.A.1. to dismiss Plaintiff's discrimination claims.

Supp. 3d 140 (E.D.N.Y. 2021) (citing Wanamaker v. Westport Bd. of Educ., 899 F. Supp. 2d 193, 208 (D. Conn. 2012)); Rajaravivarma v. Bd. of Trs. for the Conn. State Univ. Sys., 862 F. Supp. 2d 127 (D. Conn. 2012). Each factor defeats an inference of discriminatory intent here.

("Unjust enrichment and quantum meruit are ... essentially identical claims, and both are claims under 'a contract implied in law to pay reasonable compensation'")

Plaintiff's conclusory assertion that Cornell was enriched at her expense is belied by the Complaint: she admits that Cornell paid all compensation owed (*Compl.* ¶ 37) and that her tuition payment satisfied an *existing* balance (*Compl.* ¶ 56). Such allegations cannot support a claim that Cornell retained a windfall. *Yalincak,* 2009 U.S. Dist. LEXIS 143913 at *45 ("Plaintiff received the educational benefit of his tuition payments when he took classes at NYU during his five years there, and NYU was not unjustly enriched by virtue of Plaintiff's failure to earn a degree. Furthermore, it is clear that 'equity and good conscience' do not require restitution in this situation"). Accordingly, Plaintiff's quasi-contract Causes of Action must be dismissed.

The speaker: The Complaint does not contain any nonconclusory allegation that Kudva served on or influenced the Academic Review Committee. Remarks by someone other than the decisionmaker have little tendency to show discriminatory motivation. Tomassi v. Insignia Fin. Group, Inc., 478 F.3d 111, 115 (2007).

CONCLUSION

Plaintiff's claims are nothing more than a transparent attempt to relitigate an academic outcome she dislikes through causes of action that find no support in the facts alleged. Because the Complaint is procedurally barred, factually unsupported, and legally deficient in every respect, it should be dismissed in its entirety and with prejudice.

CONCLUSION

Plaintiff's claims are nothing more than a transparent attempt to relitigate an academic outcome she dislikes through causes of action that find no support in the facts alleged. Because the Complaint is procedurally barred, factually unsupported, and legally deficient in every respect, it should be dismissed in its entirety and with prejudice.

Dated: October 5, 2026

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